

Ohio Association of Professional Fire Fighters



by firefighters – for firefighters

Submitted via SEC Comment Portal

June 19, 2026

Vanessa A. Countryman, Secretary
Securities and Exchange Commission
100 F Street, N.E.
Washington, DC 20549-1090

RE: Comments on Proposed Rule and Form Amendments: Optional Semiannual Reporting for Public Companies (File No. S7-2026-15)

Dear Ms. Countryman,

I am writing to as the Executive Director for the Ohio Association of Professional Fire Fighters Deferred Compensation 457(b) Plan. On behalf of the 14,000+ firefighters, paramedics and rescue professionals in Ohio, I'd like to express our strong opposition to the Securities and Exchange Commission's (the "Commission" or "SEC") proposed rule and form amendments that would permit public companies to voluntarily opt out of traditional quarterly reporting on Form 10-Q in favor of a semiannual framework via the proposed Form 10-S.

While I appreciate the Commission's desire to reduce regulatory burdens and inject flexibility for small or unique issuers, a six-month reporting gap introduces severe information asymmetry into the public capital markets. In particular, this shift undermines the foundational fiduciary responsibilities of plan sponsors, trustees, and advisors managing governmental defined contribution structures—such as the Ohio Association of Professional Fire Fighters (OAPFF) Deferred Compensation 457 Plan—who rely on consistent, reliable data to perform continuous due diligence for public servants and their beneficiaries.

I urge the Commission to reject the proposal based on the following critical points:

1. Severe Impairment of Fiduciary Due Diligence and Monitoring

Governmental 457(b) plans operate to protect the retirement assets of public safety

professionals who dedicate their careers to serving the public. The fiduciaries and investment advisors of the OAPFF 457 Plan have a strict duty to perform rigorous, ongoing due diligence reviews of the plan's investment line-up.

- Under a quarterly reporting regime, advisors can monitor emerging warning signs within underlying mutual funds or collective trusts—such as deteriorating corporate balance sheets, structural revenue declines, margin compression, or rising debt levels—and take corrective action.
- In a fast-moving macroeconomic environment, six months is an eternity. Waiting half a year for verified, reviewed financial statements effectively blinds plan fiduciaries. It forces them to make asset-allocation and fund-retention decisions based on stale information or unverified public rumors, increasing risk for participants.

2. Disproportionate Impact on Public Servants and Beneficiaries

Unlike institutional hedge funds or high-frequency traders, the participants in the OAPFF 457 Plan—firefighters, paramedics, and their beneficiaries—are long-term retail investors utilizing defined contribution vehicles to build a secure retirement. They do not have access to costly alternative data streams or direct corporate access. They rely entirely on the democratic democratization of information provided by mandatory SEC disclosures. By allowing companies to skip Form 10-Q, the SEC effectively treats public safety professionals as second-class market participants, exposing their hard-earned deferred compensation to sudden, unmitigated market shocks.

3. Proliferation of "Blind Spots" and Delayed Problem Identification

Corporate mismanagement, shifts in competitive landscapes, and financial stress rarely align with a six-month calendar. Historically, quarterly reporting has functioned as an early-warning system that allows the market to correct incrementally. If companies elect semiannual reporting, material weaknesses in internal controls or negative financial trends could remain concealed for up to 180 days. For defined contribution plans holding these equities, this increases the probability of catastrophic "gap-down" pricing events when a company finally discloses six months of accumulated bad news.

4. The Illusion of Cost Savings vs. Increased Cost of Capital

Proponents of the rule argue it will mitigate "managerial short-termism" and cut administrative compliance costs. However, institutional investors and underwriter networks will likely demand private disclosures or continue to favor companies maintaining a quarterly cadence. Companies electing Form 10-S may find themselves penalized with higher borrowing costs and depressed valuations due to a lack of transparency.

Ultimately, the cost of this "flexibility" will be borne by investors, including the public retirement plans that anchor the stability of our capital markets.

Conclusion

For over 50 years, mandatory quarterly interim reporting has been the bedrock of trust in the U.S. financial system. Dismantling this framework in favor of semiannual optionality erodes the transparency required for institutional due diligence and jeopardizes the retirement security of public employees like Ohio's professional firefighters.

I strongly encourage the Commission to withdraw this proposal and maintain the robust, quarterly disclosure framework that ensures a fair and orderly market for all.

Sincerely,

A handwritten signature in black ink, appearing to read "William E. Quinn Jr.", with a stylized flourish at the end.

William E. Quinn Jr.

Executive Director

Ohio Association of Professional Fire Fighters

Deferred Compensation Plan

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